

When a Shliach Needs to PASKEN

FREQUENTLY ASKED SHAYLOS REGARDING KRIAS HATORAH



It is Shabbos morning, the Sefer Torah is laying on the bimah, and a mistake is found.

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There is no time to look up the din or call a rov. The correct solution must be known offhand. It is for this reason, the Rebbe related,¹ that the Rogatchover once instructed a rov-to-be to study hilchos krias hatorah before he would give him semichah (see sidebar on p. 37).

If someone approaches us with a question and we do not know the answer, we can tell him we need time to look it up or refer him to someone more knowledgeable. However, when it comes to hilchos krias hatorah, the shliach must often be the posek.

I hope this article will assist my fellow shluchim in having the solutions to common scenarios at the tips of their fingertips. To further facilitate this, this article is being printed as an insert, allowing you to easily store it in your tallis bag or in another convenient location.

1 תורת מנחם ח"ו, ע' 70-71.



1 When should the father’s name not be used when calling up an oleh to the Torah and what should be done instead?

Convert: Say “ben Avraham.”²
Individual born to a Jewish mother and non-Jewish father: The preferable option is to say “ben Avraham.” Alternatively, use his mother’s father’s name (e.g., if his name is Dovid and his mother’s father’s name is Yaakov, say, “Yaamod Dovid ben Yaakov”).³
Adopted child: Use his biological father’s name. If it is not known, say “ben Avraham.” If doing so might lead to embarrassment, some allow using his adopted father’s name, as long as it is known that he is adopted.⁴
The father, brother, or son of the person calling him up: It is preferable to ask someone else to call him up.⁵ Otherwise, if calling up your father or brother, preface your father’s name with “Avi Mori.”⁶ If calling up your son, say his name followed by the word “bni” (instead of “ben...”).

2 Which relatives should not be called up consecutively (due to ayin hara)?

Father and son; brothers; half-brothers (from either mother’s or father’s side); grandson and paternal grandfather.⁷ See the chart below for additional details.

Relation	I already called up the second relative. What do I do?	May the second relative be called up for Maftir?
Father and son; brothers; half-brothers from father’s side	If he has not yet come up to the bimah, he should not come up. Another person should be called up in his place. ⁸ If he has already come up, he may receive the aliyah. ⁹ In such a case, the first relative should return to his place immediately, instead of waiting until the end of the next aliyah as usual. ¹	If using the same Sefer Torah—no; if using a different Sefer Torah—yes. ⁷
Grandson and paternal grandfather; half-brothers from mother’s side	He may receive the aliyah even if he has not yet come up to the bimah. ⁷	Yes ⁷

- א שיערי אפרים שער א סל"ג.
- ב שיערי אפרים שם.
- ג תורת חיים (סופר) סי' קמא סק"ד.
- ד שיערי אפרים שם סל"ב.
- ה שיערי אפרים שם סל"ג.
- ו שיערי אפרים שם סל"ב.

7 שו"ע סי' קמא ס"ו. שיערי אפרים שער א סל"ג-לא. אבל סב עם בן בתו מותר (כף החיים סי' קמא סקל"ב).

3 I called up someone and then realized he is not present. What do I do?

Kohen or Levi
Another Kohen or Levi receives the aliyah, but he is not called up by name. This is done so that no one will presume that the first individual is not halachically recognized as a Kohen or Levi.⁸ (If no other Kohen is present, a Levi or Yisroel is called up instead by name, adding “bimkom Kohen,” as usual.) However, the second Kohen or Levi is called up by name in the following scenarios:
► If he is the first person’s son. The rationale is that if the first person is not a legitimate Kohen or Levi, his son would not be either.⁹ (This does not work in the opposite direction—if the second person is the father of the first—because it is possible for the father to be a Kohen or Levi and not the son, if he was born from a forbidden marriage.¹⁰ Similarly, it does not work with two brothers, even if they are twins.¹¹)
► If the absent Kohen or Levi was honored with Maftir.¹²

Yisroel
Another Yisroel is called up by name, as usual.¹³

- 8 שו"ע סי' קלה סל"א.
- 9 מוג"א שם סק"ח.
- 10 מוג"א שם.
- 11 פרמ"ג שם א"א סק"ח.
- 12 שיערי אפרים שער א סל"ט.
- 13 פרמ"ג שם א"א סק"ז.

4 What is the din if I called up a Levi or Yisroel bimkom Kohen and then a Kohen walked in, or I realized that a Kohen was present? Similarly, what is the din if I called up the Kohen a second time bimkom Levi and then a Levi walked in, or I realized that a Levi is present?¹⁴

	If the oleh did not yet say Hashem’s name in the berachah of “asher bachar banu” (even if he already said Hashem’s name in Barchu)	If the oleh already said Hashem’s name in the berachah of “asher bachar banu”
Levi/ Yisroel in place of Kohen	The oleh should (finish Barchu and) stop, and the Kohen should receive the aliyah, but should not be called up by name. To prevent embarrassment, the Levi/ Yisroel should receive the second/third aliyah (unless he does not mind not to).	The oleh should finish reciting the berachah and receive the aliyah.
Kohen in place of Levi	The Kohen should (finish Barchu and) stop, and the Levi should be called up by name and receive the aliyah.	

We can infer from this halachah that when a Kohen leaves the room to allow for multiple Yisroelim to receive aliyos, it is preferable that he wait before returning until the oleh has begun reciting the berachah.¹⁵

14 הדינים שבטבלא זו הם ע"פ שו"ע סי' קלה ו-ז ונ"כ. שיערי אפרים שער א סל"ד וסט"ז.
15 אבל אין זה מעכב בדיעבד, כי מעיקר הדין יכולים לקרות ישראל במקום כהן כשיש צורך בזה, אפילו אם נשאר הכהן בחדר - ראה מש"כ בזה בפסקי תשובות סי' קלה סק"ט.

A NOTE ON SOURCES:
Many of the halachos in this article are based on the sefer Shaarei Ephraim, the classical sefer on hilchos krias hatorah authored by R. Ephraim Zalman Margolis (a contemporary of the Alter Rebbe). This sefer is a must-read for anyone who desires to achieve a thorough grasp of these halachos.
One of the well-known shaylos that has been discussed by various poskim is the question of which procedure should be followed if a mistake is found in a Sefer Torah (see below, p. 42). In this article, we have adopted the unique approach presented in Shaalos U'Teshuvos Tzemach Tzedek, Orach Chaim, §76.

5

May I give an aliyah to someone who is in the middle of davening?¹⁶

Location in davening	May I call him up (lechat'chilah)?		May I interrupt if I am called up (bedi'eved)?
	Yisroel; Kohen/Levi when another Kohen/Levi is present	Kohen/Levi when no other Kohen/Levi is present	
During Pesukei Dezimra (i.e., from Boruch She'omar until Yishtabach)	No	Yes. If possible, he should finish the paragraph first. He should read along with the baal korei, but should not request a Mi Shebeirach verbally.	Yes. If possible, finish the paragraph first. Read along with the baal korei, but do not request a Mi Shebeirach verbally.
During Birchos Krias Shema or Krias Shema	No	No. Give the Kohen's aliyah to a Yisroel or Levi; give the Levi's aliyah to the first Kohen	Yes. If possible, finish the berachah or paragraph first. Do not read along with the baal korei, and do not request a Mi Shebeirach verbally.
During Shemoneh Esrei	No	No. Give the Kohen's aliyah to a Yisroel or Levi; give the Levi's aliyah to the first Kohen	No. If you are almost finished Shemoneh Esrei, finish and accept the aliyah. If not, someone else should be called up instead. ¹⁷

16 אם קרא כהן או לוי העומד באמצע שמו"ע וקורא כהן או לוי אחר במקומו, קורא אותו בשמו (מג"א סי' קלה סק"ז).

17 הדינים שבטבלא זו הם ע"פ שערי אפרים שער א ס"א-ז. שו"ע אדה"ז סי' ס"ו.

6 What should be done if there are many Kohanim/Levi'im and not enough Yisroelim?

A rov should be consulted.

7

On a fast day, may I call up someone who is not fasting?

On a fast day, aliya should only be given to individuals who are fasting. If it is a Monday or Thursday (when we would read in the Torah even if it wouldn't be a fast day), someone who will not complete the fast may be called up if necessary. However, this only applies (1) during Shacharis (and not during Minchah), and (2) if theoleh has not yet eaten.¹⁷ If only one Kohen or Levi is present and he is not fasting, he should leave the shul and a Yisroel should be called up in his place (or the original Kohen, in the case of a Levi).¹⁸ It should be noted that in order for Vayechal to be read, a minimum of three people who plan on completing the fast must be present.¹⁹ Hotza'ah, hagbah, and gelilah may be performed by individuals who are not fasting.²⁰

- 17 שערי אפרים שער א ס"ט.
- 18 שערי אפרים שם ס"א.
- 19 ספר המנהגים ע' 45.
- 20 שערי אפרים שם ס"ב.



8 If a tenth man shows up to the minyan during/after Musaf, is there still an obligation to lein?

There is a machlokes among the poskim as to whether krias hatorah is the obligation of the individual or of the congregation. The conclusion is that it is the obligation of the congregation (chovas tzibur).²¹ It thus follows that there is no need for a person to go out of his way to hear krias hatorah if he is not part of the minyan, and there is no need to arrange a minyan for krias hatorah separately from davening. Nevertheless, the Rebbeim made a point of always hearing krias hatorah (even when they did not daven with the minyan), and it is customary to arrange minyanim for krias whenever there are six people who have not yet heard krias. It follows that in a case where a minyan has formed during/after Musaf, there is no obligation to lein.²² However, it is commendable to do so if possible.

9 What should be done if one of the ten in a minyan metzumtzaam walks out in the middle of an aliyah?

As long as six men remain, the krias should be finished as usual, including the subsequent Chatzi Kaddish. However, Maftir should not be read. The Haftarah should be read without the berachos.²³ If one of the ten walked out in the middle of the Haftarah, the concluding berachos should still be recited.²⁴

- 21 ראה שו"ת צ"צ או"ח סוף סי' לה. פסקי תשובות סי' קלה הע' 12.
- 22 ראה שערי אפרים שער ז סל"ט.
- 23 שערי אפרים שער ז סל"ח. שו"ת צ"צ או"ח ריש סי' עו.
- 24 שם שער ט סל"ב. שו"ת צ"צ שם.

THE ROGATCHOVER GAON'S CONDITION TO RECEIVE SEMICHAH

ב עם הגיע אברך אל הרגצ'ובי כדי לקבל סמיכה, ובמקום לבחון אותו ביורה'דעה, כרגיל, הפתיעו הרגצ'ובי - (כ"ק אדמו"ר שליט"א חייך ואמר:) הרגצ'ובי בכלל לא הי' כמו רובא דעלמא... - באמר, שילמוד תחלה הלכות קריאת התורה... ולאח"ז יתן לו סמיכה! במענה לתמיהתו של האברך על כך שאינו מוצא לנכון לבחון ביורה'דעה, אלא מורה לו ללמוד הלכות קרה"ת - אמר לו הרגצ'ובי: בכלל רואה אני שהנך ירא'שמים, ובמילא, כשתבוא לידך שאלה ביורה'דעה ולא תדע להשיב, בודאי תאמר להשואל להמתין עד שתעיין בפסק ההלכה, או שתשאל אצל מישהו אחר (ואם יהי' צורך בדבר תכתוב לרבנים גדולים). אבל כשתעורר שאלה באמצע קריאת התורה, למשל, בנוכחות הגבאי וכל הקהל - עלול הנך להשיב ללא ידיעת ההלכה לאמיתתה, כיון שזהו בזיון להס"ת שישאר מונח על שולחן הקריאה עד שתגמור לעיין בדבר (ובודאי אי אפשר להשאיר את הס"ת עד שתכתוב לרבנים ותקבל את תשובתם...) ומה גם שזהו בזיון להרב... העצה היא איפוא - סיים הרגצ'ובי את דבריו - שתלמוד תחלה הלכות קריאת התורה.

משיחת יום א' פ' פינחס, י"ג תמוז ה'תשי"ב (תורת מנחם ח"י, ע' 70-71)

An individual once came to the Rogatchover Gaon to receive semichah. Instead of testing him on Yoreh Deah as usual, the Rogatchover surprised him by instructing him to learn the laws of krias hatorah. Noticing the man's surprise, the Rogatchover explained: "I see that you are G-d fearing, and that if you are asked a halachic question in other areas, you will say that you need time to look into the issue, or you will consult with others. However, when a questionable situation arises in the midst of krias hatorah, in front of the entire congregation, you might be prone to answer without proper knowledge of the halachah. After all, it is not respectful to leave the Sefer Torah idle on the bimah, nor is it a comfortable position for the rov to be in, either. The solution, therefore, is that you should study these laws."

Sicha of 13 Tammuz 5712 (Toras Menachem, vol. 6 pp. 70-71)

QUESTION & ANSWERS MISTAKES

10 Is it necessary for a minyan of people to follow along during krias hatorah?

Yes.²⁵ Practically speaking this means that the minyan should be encouraged to follow along and, at the very least, not be distracted by doing other activities.

11 What is the din if the person receiving the aliyah was shown the incorrect spot in the Sefer Torah?

Simply show him/roll the Sefer Torah to the correct spot and proceed.

In most cases, the oleh has the correct kria in mind when making the berachah (and he simply doesn't realize that he was shown the incorrect spot). He therefore does not need to recite a new berachah, even if the spot he was shown was on another column.²⁶ If the spot he was shown was *after* the correct spot, the baal korei should begin reading from the correct spot and continue at least until a few pessukim after where the oleh was shown (even if it is

25 ראה שו"ע סי' קמו ס"ב דיש מתירים ללמוד בעת הקריאה, בתנאי שיש "עשרה דצייתי לס"ת". וראה בביאור הלכה שם הטעם, דבקריאת התורה בעיני דוקא צבור. ואולי י"ל דברוב עשרה סגי, אבל יש לדחות ואכ"מ.

26 פרמ"ג סי' קמ משב"ז סק"ד (הובא בביאור הלכה שם ד"ה והזכירוהו).

part of the next aliyah).²⁷

However, the oleh may have to make a new berachah if he had the incorrect kria in mind, i.e., if the reason he was shown the incorrect spot was because the congregation made a mistake regarding the kria of that day. Since this case is uncommon, we will not elaborate here (see footnote²⁸ for where these halachos can be found).

If the oleh was shown the correct spot but the baal korei began reading from the wrong spot, the baal korei should simply stop and go to the correct spot.²⁹ (See p. 39 for when he should first finish the passuk and when he should not.)

12 What is the din if the person receiving the aliyah made the wrong berachah?³⁰

Type of error	If the error was realized before reciting Hashem's name at the end of the berachah	If the error was realized after reciting Hashem's name at the end of the berachah
Replaced "asher bachar" with "asher nasan"	He should go back to the words "asher bachar"	He should not go back. After the aliyah, he should replace the berachah of "asher nasan" with "asher bachar"
Replaced "asher nasan" with "asher bachar"	He should go back to the words "asher nasan"	If the error was realized before saying the words "nosein hatorah," he should continue with "Elokeinu Melech ha'olam, asher nasan lanu," etc. If the error was realized after concluding the berachah, he should repeat the berachah.
Skipped Barchu	He should not go back	

ח פסקי תשובות סי' קלט סקי"ב וש"ג.

- 27 שערי אפרים שער ד סי"ז. וראה משנ"ב סי' קמ שעה"צ סקי"ד דא"ז מעכב, ואם הראו לו מסדר שבוע הבא פשיטא דא"צ לקרות עד שם.
- 28 ראה פרטי הדינים בזה בשערי אפרים שער ד סי"ז ואילך.
- 29 לכאורה פשוט, שהרי כל הבע"י היתה זה שבידך העולה על ענין אחר, אבל אין סיבה שלא יחזור הבעל קורא.
- 30 הדינים שבטבלא זו הם ע"פ דרך החיים סי' עט ס"ה-ו.

13

When must the baal korei return to correct a mistake in his leining?

It goes without saying that lechat'chilah a meticulous baal korei should be chosen, and that the baal korei should make sure to prepare the parshah properly (see sidebar on this page).³¹

If the baal korei made a mistake in the trop or mispronounced a word but the meaning was not altered as a result (e.g., (את/את, הארץ/הארץ), he does not need to return to correct the mistake.³² However, if the meaning was altered as a result (e.g., (נעשה/נעשה, בחלב/בחלב), he must return to correct the mistake.³³

If the first part of the passuk (in which the mistake was made) included Hashem's name, he should finish the passuk and then repeat it correctly. However, if the continuation of the passuk includes Hashem's name as well, he should return to the beginning of the passuk right away.³⁴

If the mistake was realized after the oleh concluded the aliyah, the baal korei should begin the next aliyah from the passuk where the mistake was made and continue from there.³⁵ If he cannot begin the aliyah from that passuk—e.g., if it is less than three pessukim after the beginning of a parshah—he should begin from a permissible starting point just before the error (see p. 43 for more on permissible starting points). Returning to correct a mistake on Shabbos morning is more essential than on Monday, Thursday, and Shabbos at Minchah, because there is no second chance for the kria to be read correctly.³⁶

- 31 ראה שו"ת מהר"ם מינץ סימן פא. שערי אפרים שער ג ס"א, ע"ש בארוכה. ספר המאמרים תרצ"ו-תרצ"ז ע' 263.
- 32 שו"ע סי' קמב ס"א.
- 33 מג"א שם סק"א. וראה אשל אברהם (בוטשאטש) שם שהביא כו"כ דוגמאות.
- 34 שו"ת ציץ אליעזר ח"ב סי' מ אות ג.
- 35 משנה ברורה סי' קמב סק"ב, וע"ש בשעה"צ.
- 36 ראה ביאור הלכה סי' קמב ד"ה מחזירין.

A MATTER OF LIFE & DEATH

On Shabbos Parshas Emor 5697, the Frierdiker Rebbe delivered a maamar entitled Tanya Shivah Devarim. The maamar includes some sharp expressions relating to the importance of properly preparing and listening to krias hatorah. Chassidim relate that during the chazara of the maamar, the Frierdiker Rebbe told Reb Chatche Feigin: "If you would know where this maamar comes from, you would have an entirely different derech eretz for it!"

The Torah must be read and listened to with precision. The baal korei must enunciate each word with the proper vowels and accurate cantillation. It is also vital that he know the detailed laws pertaining to krias hatorah. While the reward for reading the Torah properly is great, failure to invest the proper effort brings sin, chas veshalom, upon the congregation who listens to his flawed reading; "life and death are in the power of the tongue" (Mishlei 18:21).

The congregation must follow every word in the Chumash; doing so impacts the blessings of children, health, and sustenance. Treating it lightly is an affront to the King. It is especially sinful to converse at this time.

Sefer Hamaamarim 5697, pp. 263-264

דזהו ענין קריאת התורה שצריכה להיות בדיוק רב. הן בהקריאה והן בהשמיעה, דלא זו בלבד דחזון הקורא בתורה צריך לדייק באותיות' להוציא כל תיבה ותיבה בדיוק במבטא הנקודות בשפה ברורה, הנה לבד זאת צריך לדייק בהטעמים שיהיו כתקונם, וכבר הוזהרו הקוראים בתורה ע"ז, ולידע כל פרטי דיני קריאת התורה אשר בנפשם הוא ממש, כמ"ש החיים והמות ביד הלשון, דכשם דגדול ורב מאד שכר הקורא בתורה כדון שהוא ענין חיים, הנה גדול עצום הוא עונשו של המזלזל בקריאת התורה ואינו מיגע עצמו ביגיעה גדולה תחלה לידע כל פרטי הטעמים, והוא ח"ו בכלל מחטיא את הרבים השומעים את קריאתו המשובשת, דזהו חיים ומות ביד הלשון, וכן הוא בשמיעת קריאת התורה שצריך לשמוע מתוך הספר שבידו ולשמוע כל תיבה ותיבה, וכידוע גודל עוצם העונש בזה ובכא להבילי נזהרים בזה, וכמבואר בספרים דשמיעת קריאת התורה בדיוק נוגע בבני חייא ומוזנא, והמזלזל בשמיעת קריאת התורה הוא כעו פנים המגרש את המלך מהיכלו, והמדבר עם זולתו הוא מחטיא את הרבים, ומרבה ח"ו וח"ו מתים ועניות בישראל, להיות דתורה שבכתב עיקר ענינה היא הקריאה, ובתורה שבעל פה הנה העיקר הוא העיון דוקא, ובשניהם הנה הכונה היא המשכת עצמות אין סוף ב"ה דכל הקורא בתורה כקורא בשמותיו של הקב"ה בחינת שמות העצמיים.

ספר המאמרים תרצ"ז, ע' 263-264



14 What should be done if a mistake is found in the Sefer Torah during leining? (Note: See sidebar on p. 42 for the exact procedure of taking out a new Sefer Torah, where applicable.)

Type of Mistake ^ט	Din
Missing, extra, or exchanged word	Take out a new Sefer Torah ^י
Double word	Take out a new Sefer Torah. ^{יא} Some say that on Shabbos or yom tov, continue as usual ^{יב}
Missing, extra, or exchanged letter that changes either the pronunciation of the word (e.g., כָּבֵשׁ/כָּשֶׁב, וְנִמְצָא/וְנִמְצָה)	Take out a new Sefer Torah ^{יג}
Missing, extra, or exchanged letter that changes neither the pronunciation of the word nor its meaning (e.g., אֲבוּתִינוּ/אֲבִתִּינוּ, עֵמִיד/עֵמִיד)	Continue as usual ^{יד}
Cracked letter, compromising its correct form (e.g., an alef or shin with a detached yud; a ches split into two zayins)	Take out a new Sefer Torah ^{טו}
Unsure whether a letter is of the correct size (e.g., unsure if a vov, zayin, or final nun is long enough)	If a child can identify it correctly, continue as usual. If not, take out a new Sefer Torah ^{טז} (see sidebar on p. 43)
Cracked letter, where ink has merely faded but has not erased completely	Continue as usual ^{יז}
Smudged or improperly written letter, compromising its correct form	Take out a new Sefer Torah ^{יח}
Letter touching another along its entire length	Take out a new Sefer Torah ^{יט}
Letter touching another, compromising its correct form	Take out a new Sefer Torah ^כ
Letters touching each other slightly and correct form is retained, and it may have occurred during the writing, before the letters were completely formed	Take out a new Sefer Torah. If this involves difficulty, continue as usual. ^{כא}
Letters touching each other slightly and correct form is retained, and it is apparent that this occurred after the letters were completely formed	Continue as usual. If it is a weekday, first scrape off and remove connecting ink if possible. ^{כב}

15 On a day when we read from two Sifrei Torah, I mistakenly placed the second Sefer Torah on the bimah instead of the first. Upon opening it, I realized it was the wrong one. Should I switch it with the first Sefer Torah, or be golel the second Sefer Torah to the correct place?

Close the second Sefer Torah and switch it with the first one.³⁷

37 לבוש סי' קמ"ג. קצשו"ע סי' עח ס"י.

16 I gave someone an aliyah and then found out that he is not Jewish. What do I do?

You do not need to redo the aliyah. However, an additional oleh must be called up to complete the requisite number of olim (e.g., seven on Shabbos). Therefore, if you realized the error during kriah, divide one of the later aliyos into two. If the error was only realized after Kaddish, the Maftir can be counted for the missing aliyah.³⁸

38 דדומה לטעה הש"ץ וקרא הפרשה רק עם ששה קרואים - ראה שו"ע אדה"י סי' רפב סי"ט.



Type of Mistake ^ט	Din
One letter enters the space of another letter but does not deform it (e.g., top of lamed enters daled on previous line, but daled still retains correct form of daled)	Continue as usual ^י
One letter enters the space of another letter and deforms it (e.g., top of lamed enters daled on previous line, causing daled to look like hei)	Take out a new Sefer Torah ^{יא}
Missing tagim, tagim touching each other, tagim separated from letter	Continue as usual ^{יב}
Too much space between letters, causing a single word to look like two words	If a child can read the word properly (see sidebar on p. 43), continue as usual. If not, take out a new Sefer Torah ^{יג}
Too little space between words, causing two words to look like a single word	If a child can read the words properly (see sidebar on p. 43), continue as usual. If not, take out a new Sefer Torah. ^{יד} There is room to be lenient if first word ends with a final letter (ך, ם, ן, ף, ץ) ^{טו}
Pesuchah instead of setumah or vice versa	Take out a new Sefer Torah ^{טז}
Missing/added pesuchah or setumah	Take out a new Sefer Torah ^{יז}
Ripped stitches connecting yerios	If five stitches remain, continue as usual. If not, take out a new Sefer Torah ^{יח}



- ט ראה שערי אפרים שער ה ושער ו לעוד הרבה דוגמאות ודיניהם.
- י שו"ת צ"צ חאו"ח סי' עו.
- יא שערי אפרים שער ה ס"ח.
- יב ראה שו"ת קנאת סופרים (לר"ש קלוגר) ע' פ, ב.
- יג מג"א סי' קמג סק"ז. שערי אפרים שם ס"ה. שו"ת צ"צ שם.
- יד מג"א שם. שערי אפרים שם. שו"ת צ"צ שם.
- טו שערי אפרים שם ס"ב.
- טז שערי אפרים שם ס"ד.
- יז שערי אפרים שם ס"ג.
- יח שערי אפרים שם ס"ט.
- יט שערי אפרים שם.
- כ שערי אפרים שם.
- כא שערי אפרים שם ס"י.
- כב שערי אפרים שם.
- כג שערי אפרים שם ס"ח.
- כד שערי אפרים שם.
- כה שערי אפרים שם סכ"ה.
- ו ראה שו"ע אדה"י סי' לו ס"ה.
- זו שערי אפרים שם סט"ו.
- כז שערי אפרים שם סט"ז.
- כח שערי אפרים שם ס"ז.
- כט שערי אפרים שם ס"ו.
- ל דרך החיים סי' פב ס"ט.
- לא דרך החיים סי' פב ס"ט.

PROCEDURE FOR TAKING OUT A NEW SEFER TORAH

If a mistake was found during any aliyah except for the last one	
If holding at a permissible stopping point	Finish reading the passuk. The oleh recites the berachah of “asher nasan.” A new Sefer Torah is removed from the aron kodesh to replace the first one, and the next aliyah begins from the following passuk. ³⁹ See question 18 below for more details.
If holding at a point where stopping is not permitted (see definition on p. 43)	Proceed until the closest permissible stopping point, then proceed as above ³⁹
If a mistake was found during last aliyah	
Finish the aliyah with the same oleh. On a day when Maftir is read, do not give a separate aliyah for Maftir. Instead, the last oleh should immediately read the Haftorah. Chatzi Kaddish is delayed until after the Haftorah ³⁹	
If a mistake was found during Maftir ³⁹	
Finish Maftir as usual ³⁹	
If no other Sefer Torah is available	
Lechat'chilah (i.e., may a passul Sefer Torah be used if no kosher Sefer Torah is available)	If there are no mistakes in the Chumash of that day's kriaH (e.g., if the kriaH is a parshah in Chumash Bereishis, and there are no mistakes in the entire Chumash Bereishis), it may be used as usual, even if there are mistakes in the other Chumashim. Otherwise, read in the passul Sefer Torah without dividing the kriaH into separate aliyos and without berachos. ³⁹ The Haftorah may similarly be read without berachos. ³⁹ Chatzi Kaddish is not recited, and Hagbah is not performed.
Bedi'eved (i.e., if a mistake was found in the middle of kriaH and no other Sefer Torah is available)	Complete the leining in the present Sefer Torah. Do not give a separate aliyah for Maftir; instead, the last oleh should immediately read the Haftorah. Chatzi Kaddish is delayed until after the Haftorah ³⁹

לב שו"ת צ"צ חאו"ח סי' עו.
לג שו"ת צ"צ שם.
This procedure should be followed for any type of mistake (as enumerated on p. 40), with the exception of a mistake involving two or more missing words. In such a case, proceeding further by saying the missing words by heart is not an option, due to the halachah that “דברים שבכתב אי אתה רשאי לאמור בעל פה” words—in the plural—of Torah Shebichsav may not be recited by heart. Thanks to the advent of computerized checking, it is uncommon to discover such a mistake today. For the halachos that apply in such a case, see *Shu"t Tzemach Tzedek*, *ibid.* and *Nesivim Bisdei Hashlichus*, vol. 1, ch. 4.
לד שו"ת צ"צ שם.
If it is a day when Maftir is read in a separate Sefer Torah, another individ-

ual receives Maftir, preceded by Chatzi Kaddish, as usual.
This procedure should be followed for any type of mistake (as enumerated on pp. 40-41), with the exception of a mistake involving two or more missing words. For the halachos that apply in such a case, see *Shu"t Tzemach Tzedek*, *ibid.* and *Nesivim Bisdei Hashlichus*, vol. 1, ch. 4.
לה ראה שו"ע אדה"ז סי' רפד ס"ג.
לו שו"ת צ"צ שם.
לז שו"ת צ"צ שם.
לח ראה שו"ע אדה"ז סי' רפד ס"ג.
לט שו"ת צ"צ שם.



- 17
- At which point during kriaH is stopping not permitted?**
1. If less than three pessukim have been read.³⁹
 2. If less than three pessukim separate that point from the beginning or end of a parshah (whether pesuchah or setumah).⁴⁰
 3. If the passuk concludes with a negative connotation.⁴¹
 4. In the middle of reading any of the following sections: Az Yashir (in Parshas Beshalach), the Aseres Hadibros (in Parshas Yisro and Parshas Va'eschanan), the tochachah (in Parshas Bechukosai and Parshas Ki Savo), the forty-two masa'os (in the beginning of Parshas Masei), Shiras Haazinu (where the aliyos must begin with the pessukim of לוי' ל"ד), and the last eight pessukim of Parshas Vezos Haberachah.⁴²

- 18
- When replacing a passul Sefer Torah with another, is Hagbah performed on the first Sefer Torah?**
- In any case where a Sefer Torah is replaced with a second one, do not do Hagbah with the first Sefer Torah; instead, simply put it away. In any case where leining was completed in a passul Sefer Torah (e.g., if a mistake was found during the last aliyah, or if no other Sefer Torah is available), Hagbah is performed, but “Vezos Hatorah” is not recited.⁴³

39 שערי אפרים שם. דרך החיים שם. קצוה"ש סי' פו ס"ג.
40 שערי אפרים שם. דרך החיים שם. קצוה"ש סי' פו ס"ג.
41 דרך החיים שם, ובסי' פ (הא') ס"ח.
42 דרך החיים שם, ובסי' פ (הא') ס"ט ואילך.
43 שו"ת אדני פז סי' יג (הובא בפתחי תשובה יו"ד סי' רעט סק"ד).

USING A CHILD TO DETERMINE A PESSUL

In certain cases, halachah directs us to use a child to determine whether or not a certain letter or word is written correctly. This should not be taken as a blanket heter to be used whenever a person is in doubt. For example, if the yud(s) of an ayin, shin, or alef or the leg of a tov are detached from the rest of the letter, the Sefer Torah is passul, even if a child can read it correctly, because the pessul is obvious.¹ However, if your are unsure as to whether the leg of a vov, zayin, or final nun is long enough, or whether a daled is large enough or appears like a yud, a child may be summoned to the bimah and asked to identify the letter. If he reads it correctly, the Sefer Torah is considered to be kosher.² Similarly, a child can be of assistance to determine whether or not there is too much space between letters or too little space between words (see p. 41). The child in question should be “neither wise nor foolish.”³ This means that the child should be proficient in the forms of the letters, but should not be familiar with the meaning of the words.⁴ If the leg of a vov, zayin, or final nun is cracked and you are unsure whether the remaining portion is long enough, the bottom portion of the leg (beneath the crack) must be covered when showing the letter to a child so the child will not use that portion to assist him in identifying the letter. However, the letters before and after the questionable letter do not need to be covered.⁵

1 שו"ע אדה"ז סי' לב סכ"א.
2 שו"ע אדה"ז שם ס"כ-כא.
3 מנחות כט, ב.
4 שו"ע אדה"ז שם ס"כ.
5 שו"ע אדה"ז שם.

QUESTION & ANSWERS MISCELLANEOUS

19

Is speaking allowed between aliyos? What if it is a discussion on the parshah?

One may not speak during krias hatorah, including words of Torah.⁴⁴ One also may not speak between aliyos.⁴⁵ However, learning that is related to the parshah is permitted between aliyos.⁴⁶

20

May two people lein the Torah/Haftorah (e.g., if a bar mitzvah boy only managed to get halfway through the Haftorah, may another person finish it in his place)?

Bedi'eved, yes.

Lechat'chilah, the entire kriaah should be read by one person. (This includes those days when we read from two or three Sifrei Torah: one person should read all parts of that day's kriaah.) However, if the baal korei is having difficulty reading, he may be replaced by another between

44 שו"ע סי' קמו ס"ב. אבל ראה ערוך השלחן שם ס"ג.

45 שו"ע שם.

46 שערי אפרים שער ד סי"ב. וראה באר היטב סי' קמו סק"א (בדפוס מכון ירושלים) משו"ת נחלת יעקב סי' נ. אבל ראה שו"ת אגרות משה או"ח ח"ד סי' מ אות כא.

aliyos.⁴⁷ Similarly, if a community does not have a steady baal korei and it is difficult to find one person who can prepare the entire parshah, the parshah may be split up between several people.

Similarly, lechat'chilah the entire Haftorah should be read by one person.⁴⁸ However, if the person reading the Haftorah is having difficulty proceeding, he may be replaced by another. In such a case, the second person should start from the beginning of the Haftorah. He should not repeat the berachah preceding the Haftorah, but he should say the concluding berachos.⁴⁹ If the person who received Maftir is unable to read the Haftorah, another may do so instead.⁵⁰ In such a case, the second person should recite the opening berachah as well.⁵¹ However, lechat'chilah, Maftir should only be given to someone who will be able to read the Haftorah.⁵²

21

Is an Ashkenaz kehilah allowed to use a Sephardi baal korei and vice versa?

Besha'as hadechak it is permitted.⁵³

22

If there are a number of Sifrei Torah in the shul, is there any order of preference that should be followed when choosing a Sefer Torah to read from (e.g., if they are written in various methods of ksav)?

There is no order of preference, as long as they are all kosher.⁵⁴ However, some give preference to a Sefer Torah that was checked by computer.⁵⁵ 

47 ראה שערי אפרים שער ג ס"ו, על פי מחזיק ברכה סו"ס רפב.

48 ראה שו"ע אדה"ז סי' רפד ס"ט, שזה שמי שלא קרא בתורה יקרא את ההפטרה מותר רק בדיעבד. ולכאורה הוא הדין לענין קריאת חלק מההפטרה.

49 שו"ע אדה"ז סי' רפד ס"י. מ"ש בפנים שלא יברך בתחלה, הוא עפ"מ ש"בשו"ע אדה"ז שם "ועיינין שם [היינו לסי' קמ] אם צריך לחזור ולברך בתחילה" (וע"ש במג"א סק"ד). סימן זה בשו"ע אדה"ז לא הגיע לידינו, ולכן מספק אין לברך.

50 שו"ע אדה"ז שם ס"ט.

51 משנ"ב סי' רפד סק"ז.

52 שו"ע אדה"ז שם.

53 ראה הנסמך בפסקי תשובות סי' קמב סק"ז.

54 ראה הנסמך בפסקי תשובות סי' קמג סקט"ו.

55 If the Sefer Torah has the words "פצוה דא" written with a hei, the hei should be changed to an alef. If warranted by the circumstances, this should be done discreetly in order to avoid machlokes (see *Igros Kodesh*, vol. 14 p. 283. *Ibid.*, vol. 15 p. 190).

וראה לשון קצות השלחן סו"ס פז, דפשיטא ל' שגם לדעת אדה"ז, א"צ להוציא ס"ת אחרת בגלל שינוי תיבה זו. ומשמע שלכתחלה אין להוציא ס"ת שכתוב בו 'דכה'.

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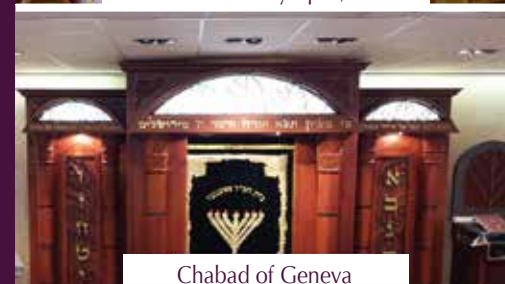
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